

Four Weeks of Fury in Bihar

Nawada, Oct 9, 2007: A man **beaten to death** after he and four others are suspected of having committed theft at a house in Badahori.

Champan, Oct 7, 2007: Two kidnappers **lynched** by angry residents at Mahnagani in West Champaran district.

Patna, Sept 21, 2007: Two suspected robbers **beaten to death**.

Vaishali, Sept 13, 2007: Ten people **bludgeoned to death** on suspicion of theft. One person also left **critically injured** after some villagers of Dhelapurwa beat the suspected thieves in the wee hours.

Nawada, Sept 9, 2007: A mob pierces and **gouges out the eyes** of three young men who snatched away bicycles.

Bihar accounted for 11.9% of violent crime and 15.1% of pending investigations in India in 2005 as per the National Crime Records Bureau.

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PARAS NATH



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the city. During that period, tourists cancelled hotel and tour bookings, which had its effect down the line on the lakhs of people employed in the tourism industry in the city. Rajiv Tiwari, president, Federation of Travel Associates of Agra estimates that after every violent incident, the tourist trade takes a hit that lasts for around three months, bringing down bookings and business by 25 to 30 percent. On every occasion that Agra is visited by violence, the city administration has to close the Taj Mahal, which is visited by nearly 12,000 people every day.

In the autumn of 2007, has mob violence reached its tipping point in the

country? Justices Mathur and Katju certainly think it has come far enough calling it, "an alarming state of affairs". Pratap Bhanu Mehta, chief executive of the Centre for Policy Research, says, "I am surprised there is not more of such violence. There is an incredible amount of deprivation... but there is also an incredible amount of self-restraint being exercised. The mobs are not attacking people or residences of the wealthy." Kumar says it is mandatory to now "activise and strengthen" grievance redressal set-up through systemic reforms.

Police and judicial reforms have long been debated and contemplated

RADICAL REFORMS

The 2003 Justice Malimath panel recommendations are yet to be implemented

■ The panel accepted the concept of federal crimes i.e. crimes against the state, like terrorism, organised crime as well as economic offences.

■ It endorsed the recommendations of the National Police Commission and suggested the introduction of the police commissioner system in towns and cities.

■ The committee recommended admissibility of confessions recorded by police officers of the rank of SP and above.

■ It suggested that audio/video recording of witness statements be authorised by the law to prevent witnesses from retracting their statements.

■ The panel sought to replace the phrase of 'proof beyond reasonable doubt' in the Indian Evidence Act with 'clear and convincing standard of proof'.

—but from the safe distance of political non-engagement. The revolutionary Justice Malimath Committee recommendations of 2003 (see box above) have not been implemented because there is too much political territory to be ceded under the recommendations.

Mehta suggests that only participation can reduce radicalism of the kind India has witnessed recently. "People should be made to have some sense of stake in the system." When writing on mob violence, American novelist Thomas Pynchon cautioned, "Like an epidemic or earthquake, the politics of the street can overtake even the most stable-appearing of governments." The warning extends beyond the currently wobbly UPA coalition to the roots of Indian democracy itself.

with Farzand Ahmed, Stephen David, Sanjay Bhadra, Subhash Mishra, Peer Mohammed, Aditi Pai, Rohit Parihar, Siraj Qureishi, M.G. Radhakrishnan, Sandeep Unnithan and Ramesh Vinayak

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PRATAP BHANU MEHTA, SOCIAL SCIENTIST

